

JS 44 (Rev. 04/21)

CIVIL COVER SHEET

The JS 44 civil cover sheet and the information contained herein neither replace nor supplement the filing and service of pleadings or other papers as required by law, except as provided by local rules of court. This form, approved by the Judicial Conference of the United States in September 1974, is required for the use of the Clerk of Court for the purpose of initiating the civil docket sheet. (SEE INSTRUCTIONS ON NEXT PAGE OF THIS FORM.)

I. (a) PLAINTIFFS**ILIRIAN BALLA**

(b) County of Residence of First Listed Plaintiff New Haven County
(EXCEPT IN U.S. PLAINTIFF CASES)

(c) Attorneys (Firm Name, Address, and Telephone Number)

Andrew G. Buchetto, Carter Mario Law Firm, 100 Plains Road, Milford, CT 06461

DEFENDANTS**WILLIAM C. DAWSON D/B/A DOUBLE D TRUCKING**

County of Residence of First Listed Defendant Washington County
(IN U.S. PLAINTIFF CASES ONLY)

NOTE: IN LAND CONDEMNATION CASES, USE THE LOCATION OF THE TRACT OF LAND INVOLVED.

Attorneys (If Known)

II. BASIS OF JURISDICTION (Place an "X" in One Box Only)

- ☐ 1 U.S. Government Plaintiff
- ☐ 2 U.S. Government Defendant
- ☐ 3 Federal Question (U.S. Government Not a Party)
- ☒ 4 Diversity (Indicate Citizenship of Parties in Item III)

III. CITIZENSHIP OF PRINCIPAL PARTIES (Place an "X" in One Box for Plaintiff and One Box for Defendant)

- | | PTF | DEF | | PTF | DEF |
|---|---------------------------------------|---------------------------------------|---|----------------------------|----------------------------|
| Citizen of This State | ☒ 1 | ☐ 1 | Incorporated or Principal Place of Business In This State | ☐ 4 | ☐ 4 |
| Citizen of Another State | ☐ 2 | ☒ 2 | Incorporated and Principal Place of Business In Another State | ☐ 5 | ☐ 5 |
| Citizen or Subject of a Foreign Country | ☐ 3 | ☐ 3 | Foreign Nation | ☐ 6 | ☐ 6 |

IV. NATURE OF SUIT (Place an "X" in One Box Only)Click here for: [Nature of Suit Code Descriptions.](#)

CONTRACT	TORTS	FORFEITURE/PENALTY	BANKRUPTCY	OTHER STATUTES
☐ 110 Insurance ☐ 120 Marine ☐ 130 Miller Act ☐ 140 Negotiable Instrument ☐ 150 Recovery of Overpayment & Enforcement of Judgment ☐ 151 Medicare Act ☐ 152 Recovery of Defaulted Student Loans (Excludes Veterans) ☐ 153 Recovery of Overpayment of Veteran's Benefits ☐ 160 Stockholders' Suits ☐ 190 Other Contract ☐ 195 Contract Product Liability ☐ 196 Franchise	PERSONAL INJURY ☐ 310 Airplane ☐ 315 Airplane Product Liability ☐ 320 Assault, Libel & Slander ☐ 330 Federal Employers' Liability ☐ 340 Marine ☐ 345 Marine Product Liability ☒ 350 Motor Vehicle ☐ 355 Motor Vehicle Product Liability ☐ 360 Other Personal Injury ☐ 362 Personal Injury - Medical Malpractice	☐ 365 Personal Injury - Product Liability ☐ 367 Health Care/Pharmaceutical Personal Injury Product Liability ☐ 368 Asbestos Personal Injury Product Liability LABOR ☐ 370 Other Fraud ☐ 371 Truth in Lending ☐ 380 Other Personal Property Damage ☐ 385 Property Damage Product Liability	☐ 625 Drug Related Seizure of Property 21 USC 881 ☐ 690 Other INTELLECTUAL PROPERTY RIGHTS ☐ 820 Copyrights ☐ 830 Patent ☐ 835 Patent - Abbreviated New Drug Application ☐ 840 Trademark ☐ 880 Defend Trade Secrets Act of 2016 SOCIAL SECURITY ☐ 861 HIA (1395ff) ☐ 862 Black Lung (923) ☐ 863 DIWC/DIWW (405(g)) ☐ 864 SSID Title XVI ☐ 865 RSI (405(g)) FEDERAL TAX SUITS ☐ 870 Taxes (U.S. Plaintiff or Defendant) ☐ 871 IRS—Third Party 26 USC 7609	☐ 375 False Claims Act ☐ 376 Qui Tam (31 USC 3729(a)) ☐ 400 State Reapportionment ☐ 410 Antitrust ☐ 430 Banks and Banking ☐ 450 Commerce ☐ 460 Deportation ☐ 470 Racketeer Influenced and Corrupt Organizations ☐ 480 Consumer Credit (15 USC 1681 or 1692) ☐ 485 Telephone Consumer Protection Act ☐ 490 Cable/Sat TV ☐ 850 Securities/Commodities/Exchange ☐ 890 Other Statutory Actions ☐ 891 Agricultural Acts ☐ 893 Environmental Matters ☐ 895 Freedom of Information Act ☐ 896 Arbitration ☐ 899 Administrative Procedure Act/Review or Appeal of Agency Decision ☐ 950 Constitutionality of State Statutes
REAL PROPERTY ☐ 210 Land Condemnation ☐ 220 Foreclosure ☐ 230 Rent Lease & Ejectment ☐ 240 Torts to Land ☐ 245 Tort Product Liability ☐ 290 All Other Real Property	CIVIL RIGHTS ☐ 440 Other Civil Rights ☐ 441 Voting ☐ 442 Employment ☐ 443 Housing/Accommodations ☐ 445 Amer. w/Disabilities - Employment ☐ 446 Amer. w/Disabilities - Other ☐ 448 Education	PRISONER PETITIONS Habeas Corpus: ☐ 463 Alien Detainee ☐ 510 Motions to Vacate Sentence ☐ 530 General ☐ 535 Death Penalty Other: ☐ 540 Mandamus & Other ☐ 550 Civil Rights ☐ 555 Prison Condition ☐ 560 Civil Detainee - Conditions of Confinement	☐ 710 Fair Labor Standards Act ☐ 720 Labor/Management Relations ☐ 740 Railway Labor Act ☐ 751 Family and Medical Leave Act ☐ 790 Other Labor Litigation ☐ 791 Employee Retirement Income Security Act IMMIGRATION ☐ 462 Naturalization Application ☐ 465 Other Immigration Actions	

V. ORIGIN (Place an "X" in One Box Only)

- ☒ 1 Original Proceeding
- ☐ 2 Removed from State Court
- ☐ 3 Remanded from Appellate Court
- ☐ 4 Reinstated or Reopened
- ☐ 5 Transferred from Another District (specify)
- ☐ 6 Multidistrict Litigation - Transfer
- ☐ 8 Multidistrict Litigation - Direct File

VI. CAUSE OF ACTION

Cite the U.S. Civil Statute under which you are filing (Do not cite jurisdictional statutes unless diversity):
28 U.S.C. §1332(a)

Brief description of cause:

Personal injuries sustained following tractor trailer accident on 10/16/2019

VII. REQUESTED IN COMPLAINT:

☐ CHECK IF THIS IS A CLASS ACTION UNDER RULE 23, F.R.Cv.P.

DEMAND \$
750,000.00

CHECK YES only if demanded in complaint:
JURY DEMAND: ☒ Yes ☐ No

VIII. RELATED CASE(S) IF ANY

(See instructions):

JUDGE

DOCKET NUMBER

DATE

SIGNATURE OF ATTORNEY OF RECORD

05/10/2021

FOR OFFICE USE ONLY

RECEIPT #

AMOUNT

APPLYING IFP

JUDGE

MAG. JUDGE

**UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF CONNECTICUT**

ILIRIAN BALLA	)	
	)	
Plaintiff,	)	
	)	C.A.
v.	)	
	)	
WILLIAM C. DAWSON D/B/A	)	
DOUBLE D TRUCKING	)	
	)	
Defendant.	)	

COMPLAINT

INTRODUCTION:

1. This case arises from tractor trailer collision that occurred on an exit ramp off of Interstate 80 eastbound in Shenango Township, Pennsylvania. The accident occurred when the defendant, William C. Dawson D/B/A Double D Trucking, was the operator of a 1978 freightliner tractor trailer that began traveling backwards when it collided into the plaintiff's 2013 freightliner tractor trailer that was parked on the side of an exit ramp and forced off the road due to the impact, causing the plaintiff, Ilirian Balla, to sustain injuries.

PARTIES

2. The plaintiff, Ilirian Balla is a citizen of Connecticut who presently resides at 38 5th Street, Waterbury, Connecticut.

3. The defendant, William C. Dawson D/B/A Double D Trucking, is a citizen of Maryland who presently resides at 8418 Mapleville Road, Boonsboro, Maryland.

JURISDICTION

4. The jurisdiction of this court is invoked pursuant to 28 U.S.C. §1332(a) as the value of the matter in controversy exceeds \$75,000.00, exclusive of interest and costs, and is between citizens of different states.

5. Venue is proper pursuant to 28 U.S.C. § 1391(b)(2).

STATEMENT OF FACTS.

6. On or about October 16, 2019, at approximately 1:38 AM, the plaintiff, Ilirian Balla, was sleeping inside his 2013 freightliner tractor trailer that was parked on the off ramp in the rest area along I-80 East in Mercer County, Pennsylvania.

7. At the same time and place, the defendant William C. Dawson D/B/A Double D Trucking, was the operator of a 1978 Frgtliner tractor trailer traveling along the I-80 East off ramp when he brought the truck and trailer to a stop for on the opposite side of the off ramp and ahead of the plaintiff's tractor trailer.

8. At the same time and place, as the defendant's tractor trailer was in front of the plaintiff's tractor, it suddenly and without warning, proceeded to travel backwards and directly into the driver's side rear portion of the plaintiff's tractor thereby pushing the plaintiff's tractor off the roadway and into a light pole which collapsed to the ground as a result of the impact (hereinafter the "collision").

9. This collision, and the resulting injuries and losses suffered by the plaintiff, were due to the negligence and carelessness of the defendant, William Dawson D/B/A Double D Trucking, in that he:

- a. Operated a tractor trailer at a rate of speed too fast for the traffic conditions then and there existing;

- b. Failed to turn the tractor trailer to the left or to the right so as to avoid the collision, although in the exercise of due care, could and should have done so;
- c. Failed to keep the tractor trailer under proper and reasonable control;
- d. Failed to keep a proper and reasonable lookout for other vehicles;
- e. Failed to apply the brakes in time to avoid the collision, although in the exercise of due care, could and should have done so.
- f. Failed to operate his vehicle as nearly as practicable entirely within a signal lane and moved his vehicle from the lane before ascertaining that the movement could be made with safety, in violation of Pennsylvania General Statutes Section 3309;
- g. Failed to ensure his tractor trailer was in park after coming to a stop in front of the plaintiff's tractor trailer;
- h. Failed to engage the parking brake on his tractor trailer after coming to a stop in front of the plaintiff's tractor trailer;
- i. Fell asleep in the driver's seat of tractor trailer while it the engine was running and before engaging any of the brakes on the tractor trailer;
- j. Operated a commercial motor vehicle while his ability or alertness was so impaired, or so likely to become impaired, through fatigue, illness, or any other cause, as to make it unsafe for him to operate the commercial motor vehicle in violation of the Federal Motor Carrier Safety Regulations Section 392.3;
- k. Operated a commercial motor vehicle when failed to ensure that the service brake, including trailer brake connections; steering mechanism lighting devices and reflectors; tires; horn; windshield wipers; and wheels and rims where in proper working condition in violation of the Federal Motor Carrier Safety Regulations Section 392.70;

10. As a result of this collision, the plaintiff suffered the injuries or exacerbations as set forth below, some of which injuries or exacerbations, or the effects thereof, being permanent in nature: (1) Lumbar sprain, pain and spasms; (2) Left subarticular disc protrusion at T12-L1 that contacts the traversing left L1 nerve root; (3) Right subarticular disc protrusion at L1-L2 that

contacts the traversing right L2 nerve root; (4) L2-L3 diffuse disc bulge; (5) moderate to severe central canal stenosis at L3-4 and L4-L5 with disc material contacting the traversing bilateral L4 and L5 nerve roots; (6) left subarticular disc extrusion with a possible displaced fragment narrows the left lateral recess at L5-S1 contacting the left S1 nerve root; (7) left sided rib pain; (8) thoracic sprain, pain and spasms; (9) lumbar spondylosis.

11. As a further result of the collision described above, the plaintiff has experienced, and will continue to experience in the future, pain and suffering, an increased likelihood of future medical treatment including surgery, and/or disorders, and fear and apprehension of such future medical treatment and/or disorders.

12. As a further result of these injuries, the plaintiff has incurred, and may continue to incur, medical expenses.

13. As a further result of these injuries, the ability of the plaintiff to pursue and enjoy life's leisure activities has been reduced.

14. As a further result of these injuries, that plaintiff lost income and may continue to do so in the future.

15. As a further result of these injuries, the plaintiff's earning capacity has been diminished.

WHEREFORE, the Plaintiff claims:

1. Compensatory damages in the amount of \$750,000;
2. Such other and further relief as the Court deems appropriate.

PLAINTIFF:
Ilirian Balla,



By: Andrew G. Buchetto, Esq.
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Milford, CT
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Fed Bar No: CT# 29943

**UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF CONNECTICUT**

ILIRIAN BALLA

Plaintiff,

v.

**WILLIAM C. DAWSON D/B/A
DOUBLE D TRUCKING**

Defendant.

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)
)

C.A.

DEMAND FOR JURY TRIAL

Pursuant to Fed. R. Civil P., Rule 38, the Plaintiff in the above captioned matter hereby
demands a trial by jury on all issues.

PLAINTIFF:
Ilirian Balla,


By: Andrew G. Buchetto, Esq.
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